

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

**COMPLAINANT COOL LIVING LLC'S OPPOSITION TO MICHAEL
HAAHR HANSEN'S MOTION TO QUASH, OR IN THE ALTERNATIVE,
MODIFY DEPOSITION SUBPOENA**

Pursuant to the FMC's Rules of Practice and Procedure ("Rules") at 46 C.F.R. § 502.132(c), Complainant, Cool Living LLC ("Cool Living"), through its undersigned counsel, Holland & Knight LLP (the "Firm")¹, respectfully submits this Opposition on an expedited basis ("Opposition") to Michael Haahr Hansen's Motion to Quash or in the Alternative, Modify Deposition Subpoena ("Motion").

¹ Pursuant to the Presiding Officer's June 24, 2026 Order on Complainant's Motion for Extension of Discovery Deadline ("June 24 Order"), the Firm joins this Opposition as it is encompassed by the Presiding Officer's order that the Firm "represent Complainant at any deposition of Michael Haahr taken during the extended discovery period and *for all ancillary matters related thereto.*" (emphasis added).

I. PRELIMINARY STATEMENT

Cool Living took every reasonable step to avoid motion practice concerning a deposition that was ordered by the Presiding Officer. It did so on the very limited time afforded Respondents during this morning, when the draft Motion was shared. Cool Living submits this expedited opposition in the event the Presiding Officer takes action today. Cool Living is ready, willing, and able to comply with the June 24 Order, directing that the deposition of Michael Haahr Hansen be taken on or before July 13, 2026.

II. FACTUAL BACKGROUND

At 10:34 am on this morning of July 2, 2026, the Firm was contacted by Mr. Daniel Bang, counsel for ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”), sending a copy of the draft Motion and inquiring after Cool Living’s position on the instant Motion. Counsel’s email stated, “Please advise whether Complainant opposes the motion. We are available for a call today if you would like to discuss.” Undersigned counsel called counsel for ALPI within ten minutes of receiving the Motion because the Motion raised a number of issues that required clarification and explanation as it did not comport with the Presiding Officer’s June 24 Order concerning the deposition of Michael Haahr Hansen (the “July 2 Call”). Counsel for Cool Living then sent a summary recap of the July 2 Call at 11:34 am. (Correspondence attached hereto as **Exhibit 1**), in the event Respondents rushed to file the Motion before counsel could consult with Cool Living. Specifically, if Respondents filed the Motion before Cool Living’s response could be obtained, the July 2 Call recap would at least address counsel for Cool Living’s positions. See Exh. 1.

In the correspondence that followed at 11:51 am and 12:09 pm respectively, the Firm again advised that it would contact Cool Living to assess its position. Not twenty minutes later, and without giving the Firm adequate time to actually assess the position of its client, counsel for ALPI

filed the instant Motion. In fact, the undersigned counsel was literally on an overseas phone call with Cool Living's representative, Mr. Tony Hopkins, at the very moment the Motion was filed and served. We read the Motion together to confirm all of the arguments in the draft Motion were made despite the critical questions and issues raised in the July 2 Call.

Complainant submits this expedited Opposition today, in the interest of ensuring the Presiding Officer has the benefit of Complainant's position in advance of the federal holiday on July 3, 2026, and the deposition currently subpoenaed for July 7, 2026. Had Complainant been afforded more time to confer with its client and respond, it might have been able to provide a more substantive commentary. Nevertheless, Complainant submits this direct and formal opposition to address each argument raised in the Motion.

II. ARGUMENT

A. The Presiding Officer's June 24 Order Satisfies Rule 132(c)'s Exception to the Twenty-Day Requirement

The Motion quotes Rule 132(c) to assert that the subpoena is in violation of the twenty-day notice requirement, but ignores the very language contained in the same Rule that defeats its own argument. Rule 132(c) states that the twenty-day service requirement applies "unless otherwise agreed to by all parties *or otherwise ordered by the presiding officer.*" 46 C.F.R. § 502.132(c) (emphasis added).

The Presiding Officer's June 24, 2026 Order states:

ORDERED that the discovery period is extended to July 13, 2026, for the limited purpose of allowing Complainant to depose Michael Haahr in his individual capacity on the condition that Complainant compels his attendance by subpoena or Michael Haahr appears voluntarily within the extended period.

This order is precisely the kind of order contemplated by Rule 132(c). The Presiding Officer ordered the deposition to occur by July 13, 2026, conditioned on Complainant compelling attendance by subpoena—which Complainant did.² The subpoena enforces the June 24 Order, and the June 24 Order supplies the exception that the Rule expressly contemplates. The Motion nowhere addresses this inconsistency.

B. The Compliance Date of the Subpoena Reflects the Practical Constraints Created by Scheduling Limitations in Ongoing Discussions

The Motion contends that the July 7, 2026 compliance date identified in the subpoena rendered any right to move to quash effectively illusory. That argument, however, ignores the parties' prior discussions concerning scheduling. During telephone conferences between counsel, as well as in the earlier email correspondence contained in Exhibit 1, the Firm informed counsel for ALPI that, because the parties would be occupied with the depositions of Mr. Tony Hopkins and Ms. Anna Farkas on July 8 and 9, respectively, it was available to depose Mr. Haahr Hansen on either July 10 or July 13. Counsel for ALPI advised that it was unavailable on those dates.

In light of the scheduled depositions on July 8 and 9, July 7 was the latest available weekday before the July 13, 2026 discovery deadline established by the June 24 Order. Accordingly, that date was selected as the subpoena's compliance date expressly subject to modification by agreement of the parties. The Firm conveyed the same understanding in its email to the Presiding Officer requesting issuance of the subpoena, on which counsel for ALPI was copied. In that correspondence, the Firm explained that the parties were continuing to discuss

² The subpoena was issued by the Presiding Officer on June 29, 2026 and served the same day upon Mr. Michael Haahr Hansen at his place of residence provided by counsel for ALPI in Brooklyn, NY. The affidavit of service has been shared with counsel for ALPI and is **Exhibit 2**, with personal information redactions.

scheduling while noting that the subpoena was requested to ensure the matter proceeded according to the June 24 Order. These ongoing discussions between counsel were also the reason that the subpoena did not indicate “the place of compliance, officer, or oath procedure,” which was expressly contingent on the parties’ ongoing discussions regarding deposition logistics.

The Motion omits any reference to these prior scheduling discussions or the practical constraints that dictated the compliance date included in the subpoena. All of which undermine this argument.

C. The Demand for a Deposition in Atlanta Lacks Legal Authority and Goes Against Common Sense Logistics Constraints

The Motion argues the subpoena is defective for commanding a remote deposition without stipulation or order. However, on a prior telephone call, the Firm advised counsel for ALPI that Complainant would seek a remote deposition. Counsel for ALPI did not object to or raise any demand for an in-person deposition on that call.

When the issue was raised on the July 2 Call, the Firm advised that it has no objection to an in-person deposition, but that it could not understand the demand for an in-person deposition in Atlanta, Georgia and would raise the matter with Cool Living when Respondents explained their position. No viable response was provided on the July 2 Call, or in the Motion.

1. The Motion’s Alternative Request for an Atlanta Deposition Is Without Merit

The Motion requests in the last sentence of the Motion Conclusion, in the alternative to quashing the subpoena, that the subpoena be modified to reflect a deposition to be conducted at the offices of co-counsel Miller & Martin PLLC in Atlanta, Georgia. The Motion cites no legal authority whatsoever for requiring a subpoena witness served in New York City to appear for deposition in another state with no connection to the dispute.

Though the Motion cites cost and inconvenience as a factor for the instant Motion, costs do not appear to be Mr. Haahr Hansen's actual concern. If costs were genuinely at issue, Mr. Haahr Hansen could have agreed to a remote deposition, which would have eliminated travel costs entirely. The deponent was literally served in Brooklyn, New York, on Monday, June 29, 2026. See Ex. 2. Instead, the deponent oddly insists on an in-person deposition in a state he does not reside—a location chosen solely because one of his two counsel, Mr. Kohler, is located there. In the Motion, the other co-counsel, Mr. Bang, lists the location of his law offices in New York.

The Motion provides no justification for selecting Atlanta over a remote deposition, New York, or any other location for that matter. If the deposition must proceed in person and Mr. Haahr Hansen will not agree to a remote deposition, it should be ordered to take place in New York City, where the deponent resides and where one of his two counsel is physically located, or alternatively in Washington, D.C., where the Federal Maritime Commission is located. Either location has a substantially greater connection to this proceeding than Atlanta, Georgia.

D. Eight Days' Notice Is Reasonable Under the Circumstances Ordered by the Presiding Officer

The Motion argues that eight days' notice is unreasonable and unduly burdensome. But this ignores that the Presiding Officer specifically ordered the deposition to occur by July 13, 2026, conditioned on Complainant taking the necessary steps to serve a subpoena—which it did. There is no dispute that the subpoena was properly served; Complainant provided counsel for Mr. Haahr Hansen with a copy of the certificate of service.

The Motion's undue-burden argument depends on treating Mr. Haahr Hansen as a disinterested non-party entitled to the heightened protections afforded to strangers to the litigation. The record does not support that characterization. Respondents cannot claim Mr. Haahr Hansen is

wholly uninvolved while their own litigation counsel appears on his behalf and files the instant Motion. Nor is he merely a peripheral former employee. Mr. Haahr Hansen served as a director of ALPI entities affiliated under a common parent and executed sworn affirmations while serving as a director and board member of ALPI U.S.A., a named Respondent. Most notably, Mr. Haahr Hansen personally verified Respondents' Verified Answer (Dkt. 12) in this proceeding. On January 14, 2026, he declared under penalty of perjury, as ALPI's "Chief Logistics Officer," that the facts contained in Respondents' pleading were true. Despite ALPI's hollow mischaracterizations in the Motion, ALPI cannot escape that the individual that Respondents now characterize as a disinterested non-party is the same senior corporate officer who swore to their Answer in this case.

The First Circuit case cited by Respondents provides no support for this characterization either. In support of its theory that the subpoena's notice period should be given "special weight," ALPI cited to *Heidelberg Ams., Inc. v. Tokyo Kikai Seisakusho, Ltd.*, which involved a subpoena for "a decade's worth of materials" from a non-party corporate entity, Heidelberg, who was not party to this or any related litigation, and only became involved in the matter through acquisition talks it entered into with the Plaintiff in this action. 333 F.3d 38, 40–42 (1st Cir. 2003).

When asked on the July 2 Call whether Mr. Haahr Hansen's position was that additional time was needed—and if so, how much time, to determine whether Cool Living would agree to approach the Presiding Officer with the accommodation despite the Presiding Officer's July 13 deadline—counsel for Mr. Haahr Hansen offered no response. No alternative date was proposed. No suggestion was made. Cool Living was and remains amenable to alternative dates, but none were suggested by ALPI, highlighting the one of several problems with the instant Motion.

E. The June 24 Order Negates the Argument That Defects Arise from Complainant's Delay

The Motion argues that any defects in the subpoena are the product of Complainant's own delay. The June 24 Order directly negates this argument. The Presiding Officer was aware of the timeline when issuing the Order extending the discovery period and conditioning the extension on Complainant compelling Mr. Haahr Hansen's attendance by subpoena. No motion for reconsideration of that Order has been filed. The Motion is not an opportunity to rehash points. The issue is moot.

III. CONCLUSION

For the foregoing reasons, Complainant respectfully requests that the Motion to Quash be denied. In the alternative, if the Presiding Officer determines that modifications to the subpoena are warranted, Complainant requests that the order reconfirm that deposition proceed on a date within the extended discovery period, at a location in New York City where the deponent resides or, alternatively, in Washington, D.C. where the Federal Maritime Commission is located. In either case, because of the curious position taken as to any remote accommodations, that it be emphasized that remote accommodations be permitted for Cool Living's representative to attend the deposition remotely as a party company representative is permitted to do.

Respectfully Submitted,

Dated: July 2, 2026

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document at the following email addresses:

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/s/ Ashleigh T. Higgs